

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CIV2202485

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: LELAND SPELMAN, ET AL	
vs.	
DEFENDANT: STATE FARM GENERAL INSURANCE COMPANY, ET AL	

NATURE OF PROCEEDINGS: 1) MOTION - STAY
2) MOTION - RECONSIDERATION
3) MOTION – RELIEF- DISCOVERY FACILITATOR PROGRAM

RULING

There are three motions pending. This matter was last called on June 26, 2026, with the parties appearing in court. They stipulated for the court to continue the hearing on all three motions, to allow more time for the parties to engage in settlement discussions.

The parties did not provide the court with an update regarding the motions on calendar.

Appearances are required.

The court repeats the tentative rulings issued regarding the motions pending below for the convenience of the parties:

Plaintiffs Leland Spelman and Linnea Carlson (“Plaintiffs”) filed a Motion for Relief from Deemed Admissions; Motion to Stay Summary Judgment Proceedings; and Motion for Reconsideration. The motions were filed on March 27, 2026. Defendant State Farm, et al., filed opposition briefs on June 11, 2026. Plaintiff filed reply briefs on June 15, 2026.

This matter was last called in this department on March 20, 2026, after the court granted Defendant’s Motion to Dismiss for Failure to Prosecute, and Motion to have the matters set forth in their Requests for Admission Deemed Admitted for Plaintiffs’ Failure to Respond.

Despite prevailing substantively on all issues, counsel for the Defendant indicated that State Farm was nevertheless willing to engage in good faith negotiations with the Plaintiffs to resolve the case. Unfortunately, it appears the settlement discussions were not fruitful. The parties appeared in court *for*

a Case Management Conference on June 24, 2026, with State Farm representing that its settlement offer remains on the table.

The Court reconsiders its March 23, 2026, order granting Defendants State Farm General Insurance Company and Renee Waina's ("Defendants") motion to deem matters admitted as to Plaintiff Oscar Carlson/Estate of Oscar Carlson only, using its inherent authority to reconsider its own interim rulings on its own motion (Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC (2015) 61 Cal.4th 830, 840).

BACKGROUND

This is an insurance coverage dispute. Spelman and Linnea Carlson, a married couple, brought this case in their individual capacities and in their capacities as guardians ad litem for three of their family members (their children, Ellie and Julian, and Ms. Carlson's father, Oscar), who are also plaintiffs in this case. (FAC, ¶¶ 1-5.) Oscar Carlson died on January 11, 2024, while this litigation was pending. (See Def. RJN in Opp. to Mtn. for Relief from Deemed Admissions,¹ Ex. 4.)

Plaintiffs allege that all five family members resided at a home insured by State Farm. (FAC, ¶ 10.) They identify Defendant Renee Waina as an agent of State Farm. (Id. at ¶¶ 13, 35.) Plaintiffs allege that in two separate incidents (June 15, 2019, and April 15, 2021), the property was "heavily damaged by water and other covered causes of loss." (Id. at ¶ 21.) Plaintiffs filed claims with State Farm. (Ibid.) They allege that State Farm "paid for some of Plaintiffs' losses, but not all[,]" and that they were entitled to additional funds to cover the losses under the applicable insurance policies. (Ibid.) The FAC asserts causes of action for breach of contract, breach of the implied covenant of good faith and fair dealing, and negligent misrepresentation.

In September 2025, Defendants served Plaintiffs with their Requests for Admission, Set One ("the RFAs"). (Ellingson Dec. in Opp. to Mot. for Relief from Deemed Admissions, ¶ 4 & Ex. 1.) The RFAs sought responses on behalf of all five Plaintiffs and asked them to admit matters cutting to the heart of their claims. (Id. at Ex. 1.) For example, Plaintiffs were requested to admit that State Farm owes them no additional policy benefits arising out of either the June 2019 or the April 2021 incident and that Defendant Renee Waina made no misrepresentations to them. (Ibid.) Unfortunately for Plaintiffs, who were unrepresented at the time, they did not respond to the RFAs or request an extension of time to respond. (Id. at ¶ 6.) In December 2025, Defendants moved for an order deeming the matters in the RFAs admitted. (See Code Civ. Proc.,² § 2033.280.) Plaintiffs, who are in pro per, did not oppose the motion. The motion to deem the RFAs was GRANTED on March 23, 2026. The Court also DENIED Defendants' motion to dismiss the case for failure to prosecute (§ 583.410).

PROCEDURAL MATTERS

¹ Defendants' requests for judicial notice are granted. (Evid. Code, § 452, subd. (d).) Defendants mistakenly listed the filing date for the Petition for Letters of Administration for which they seek judicial notice as March 29, 2026. The Court judicially notices the Petition for Letters of Administration filed in Case No. PR0001787 on April 29, 2026, and set for hearing on June 25, 2026.

² All further undesignated statutory references are to the Code of Civil Procedure.

The moving papers are voluminous and confusing, with Plaintiff raising arguments in one motion that pertain to the other motion. For example, in the reply in support of the motion for reconsideration, Plaintiffs argue that certain evidence they presented in that motion should also be considered in support of their motion for relief from deemed admissions. (See Pltf.'s Reply in Supp. of Mot. for Reconsideration, p. 3.) In connection with the motion to dismiss, Plaintiffs filed an untimely document titled "Plaintiffs' Supplemental Opposition to Defendants' Motion to Dismiss for Failure to Prosecute." Plaintiffs argue that the court did not consider arguments presented in "Plaintiffs' Supplemental Opposition to Defendants' Motion to Dismiss for Failure to Prosecute" when it ruled on Defendants' separate motion to deem matters admitted.

While the court has attempted to review the filed documents and patch together relevant arguments made by the Plaintiff, it is up to the moving party to direct the court to the arguments to be considered in the moving papers. Based on its inherent power "[t]o provide for the orderly conduct of proceedings before it" (§ 128, subd. (a)(3)), when it rules on each of the instant motions, the Court considers arguments presented in the submissions directed at that motion.

Plaintiffs also filed a "supplemental exhibit," which was a supplemental brief, and an accompanying declaration. Submitting additional arguments and/or evidence in support of a motion weeks after the day the motion is filed, outside of a reply brief, is improper. Nevertheless, the Court will consider those supplemental materials.

I. SUA SPONTE RECONSIDERATION OF PRIOR RULING

A court has inherent authority to reconsider its own interim rulings on its own motion. (Even Zohar, *supra*, 61 Cal.4th 830, 840.) The exercise of this power is not subject to the confines of Code of Civil Procedure, section 1008 (governing statutory motions for reconsideration). (*Ibid.*; *In re Marriage of Spector* (2018) 24 Cal.App.5th 201, 216-217.) The Court is exercising this power to reconsider its March 23, 2026, order granting Defendants' motion to deem matters admitted as to Plaintiff Oscar Carlson/the Estate of Oscar Carlson only.

When Oscar Carlson died in January 2024, his claims against Defendants passed to the personal representative of his estate or, if none, his successor in interest. (§ 377.31.) No personal representative of Oscar Carlson's estate has yet been appointed even though he died two and a half years ago. (See Petition for Letters of Administration filed on April 29, 2026, in Marin County Superior Court Case No. PR0001787, currently pending.) No one has submitted the declaration required to succeed to Oscar Carlson's interest in this litigation as successor in interest. (See § 377.32.) Even if there were a personal representative or a successor in interest, for the Court to permit one of those to continue to prosecute Oscar Carlson's claim against Defendants, the Plaintiff would need to seek permission from the court. (§ 377.31.) Plaintiffs have yet to file that motion.

Defendants served the RFAs on Oscar Carlson's estate by serving them upon Spelman and Linnea Carlson as personal representatives of the estate. (Ellingson Dec. in Opp. to Mot. for Relief from Deemed Admissions, Ex. 1.) Spelman and Linnea Carlson were also served with the RFAs in their individual capacities. (*Ibid.*) Plaintiffs have not been appointed personal representative of the estate, although the court was informed by the Plaintiffs on June 24, 2026, during the Case Management

Conference that the probate court will rule on the matter on June 25. The parties were ordered to meet and confer on the issue at 11 a.m. following the hearing on June 25.

Defendants argue that Linnea Carlson, as Oscar Carlson's daughter, is presumptively a beneficiary of his estate, and that this means she is empowered to accept service on behalf of her deceased father. They rely on *Ring v. Harmon* (2021) 72 Cal.App.5th 844, which states that where a personal representative of an estate cannot or will not act to vindicate an injury to the estate, "it is appropriate to allow the beneficiary to pursue an action" on the estate's behalf. (72 Cal.App.5th 844, 850.) *Ring* does not consider whether a beneficiary is required to pursue an action. *Ring* does not aid Defendants' attempt to require Linnea Carlson to step in for her deceased father.

Defendants also argue that Spelman and Linnea Carlson are equitably estopped from asserting that they are not personal representatives of Oscar Carlson's estate or that they do not have power to act on the estate's behalf. This argument is based on a proof of service Plaintiffs' former counsel executed upon their withdrawal, which identified Spelman and Linnea Carlson as personal representatives of Oscar Carlson's estate, and on a Notice of Death filing Linnea Carlson submitted in March 2026 in which she purported to speak "on behalf of all plaintiffs." (Def. RJN in Opp. to Mtn. for Relief from Deemed Admissions, Exs. 3-4.) The Court is not persuaded that one can invoke estoppel to the detriment of one person (here, Oscar Carlson or his estate) based on statements or conduct by somebody else (here, Spelman and Linnea Carlson). (See *Kleinecke v. Montecito Water Dist.* (1983) 147 Cal.App.3d 240, 245 ["The doctrine of equitable estoppel is based on the theory that a party who by his declarations or conduct misleads another to his prejudice should be estopped to prevent him from obtaining the benefits of his misconduct."] [emphasis added].)

Accordingly, the Court reconsiders its ruling on the motion to deem matters admitted and denies that motion as to Plaintiff Oscar Carlson/Estate of Oscar Carlson only. The estate portion of the case shall proceed, with the estate – or its representative authorized to respond to the RFAs service on Oscar Carlson not later than July 31, 2026.

The court remains hopeful that Plaintiffs will again find counsel to represent them. The individual plaintiffs are entitled to proceed pro per if they wish, but Oscar Carlson's estate must proceed with legal representation. (*Hansen v. Hansen* (2003) 114 Cal.App.4th 618, 621 ["A person who is unlicensed to practice law and who represents a decedent's estate cannot appear in propria persona on behalf of the estate in matters outside the probate proceedings."].)

Plaintiffs are to file a successor in interest request pursuant to Code of Civil Procedure, section 377.31, with counsel for the estate entering an appearance on behalf of this plaintiff, by July 31, 2026. Otherwise, the Court may dismiss the estate's claim for failure to prosecute on its own motion. (See §§ 583.430; 583.420, subd. (a)(2)(A).) The court is hopeful the parties will continue to meet and confer in an effort to resolve the case.

Court references to "Plaintiffs" are limited to Plaintiffs Leland Spelman and Linnea Carlson and exclude Oscar Carlson and his estate.

II. MOTION FOR RELIEF FROM DEEMED ADMISSIONS

A. LEGAL STANDARD

“If a party to whom requests for admission are directed fails to serve a timely response, . . . [t]he party to whom the requests for admission are directed waives any objection to the requests, including one based on privilege or on the protection for work product[.]” (§ 2033.280, subd. (a).) “The requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requested be deemed admitted.” (§ 2033.280, subd. (b).) “The court shall make this order, unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” (§ 2033.280, subd. (c).) “Any matter admitted in response to a request for admission is conclusively established against the party making the admission in the pending action, unless the court has permitted withdrawal or amendment of that admission under Section 2033.300.” (§ 2033.410, subd. (a).)

Code of Civil Procedure, section 2033.300 provides that a court may grant a party leave to “withdraw or amend an admission made in response to a request for admission[.]” (§ 2033.300, subd. (a).) This provision applies to deemed admissions resulting from an order granting a motion under Section 2033.280. (*Wilcox v. Birdthistle* (1999) 21 Cal.4th 973, 977 [interpreting the version of Section 2033.300 in force prior to the non-substantive reorganization of the Civil Discovery Act in the early 2000s].) A court has discretion to grant this relief provided “it determines that the admission was the result of mistake, inadvertence, or excusable neglect, and that the party who obtained the admission will not be substantially prejudiced in maintaining that party’s action or defense on the merits.” (§ 2033.300, subd. (b).)

B. DISCUSSION

The grounds for relief under Section 2033.300 are that the moving party’s response to requests for admission was the product of a mistake, of inadvertence, or of excusable neglect. (§ 2033.300, subd. (b).) The question before the Court is whether circumstances amounting to Plaintiffs’ mistake, inadvertence, or excusable neglect existed and brought about the March 23, 2026, order granting Defendants’ motion to deem matters admitted. The Court issued that order based on Defendants’ showing that Plaintiffs never responded to the RFAs. (March 23, 2026, Order, p. 6.) Plaintiffs did not oppose the motion³ and there was no evidence before the Court establishing that Plaintiffs, prior to the hearing on the motion to deem matters admitted, served Defendants with proposed responses to the RFAs that were substantially compliant with the applicable statutes.

A court is required to grant a motion to deem matters admitted under these circumstances. (§ 2033.280, subd. (c).) Because of the basis for the Court’s ruling on the motion to deem matters admitted, to prevail on the instant motion for relief, Plaintiffs need to show that some sort of mistake, inadvertence, or excusable neglect is the reason they never responded to the RFAs. Arguments that the RFAs or the motion to deem matters admitted were defective are irrelevant except to the extent

³ Plaintiffs argue that they did oppose the motion because they raised arguments directed at that motion in their submission entitled “Plaintiffs’ Supplemental Opposition to Defendants’ Motion to Dismiss for Failure to Prosecute.” That Opposition was not filed as an opposition to the motion to deem matters admitted under Section 2033.280. It was also untimely. The Court properly treated the motion to deem matters admitted as unopposed.

Plaintiffs offer those circumstances to somehow justify their failure to respond to the RFAs or to timely submit proposed responses.

Plaintiffs argue that their nonresponse to the RFAs was the product of excusable neglect because they were, or at least believed they were, “legally prohibited” from responding. (Memorandum, p. 3.) They explain that the RFAs were served on Spelman and Linnea Carlson as personal representatives of the estate of plaintiff Oscar Carlson, a status neither Spelman nor Linnea Carlson holds, so they were unable to respond on behalf of the estate. Plaintiffs maintain that this somehow justifies all five plaintiffs’ failures to respond to the RFAs, including Spelman’s and Linnea Carlson’s failures to respond in their individual capacities, because “[t]he RFAs were contained in a single document bundling all parties – including the deceased Oscar Carlson – as one indivisible group” and “[t]here was no mechanism to respond individually without purporting to respond for the estate.” (Memorandum, p. 4.)

The matter will proceed on behalf of the estate of Oscar Carlson if the estate is able to secure counsel, even if for the limited purpose of settlement negotiation purposes.

While the court will give considerable leeway to pro per litigants, they are not entitled to special treatment or leniency based on their self-represented status. (See *Rappleyea v. Campbell* (1994) 8 Cal.4th 975, 984-985; *Harding v. Collazo* (1986) 177 Cal.App.3d 1044, 1054, 1056.) Here, the Plaintiffs’ failure to respond to the RFAs was not “excusable” neglect. (§ 2033.300, subd. (b).)

Plaintiffs insist they made an honest mistake of law, referring to *State Farm Fire & Casualty Co. v. Pietak* (2001) 90 Cal.App.4th 600, 611, which stated that such a mistake is a valid ground for relief under Code of Civil Procedure, section 473, subdivision (b) “when the legal problem posed ‘is complex and debatable.’” (Id. at p. 611 [quoting *McCormick v. Board of Supervisors* (1988) 198 Cal.App.3d 352, 360 (superseded by statute on unrelated grounds as stated in *County of Sacramento v. Superior Court* (2009) 180 Cal.App.4th 943, 950-951)].) The Court will assume for purposes of argument that this case has some application to Section 2033.300. There was no complex or debatable legal question as to whether Plaintiffs were permitted to simply not respond to the RFAs. A party who is served with requests for admission is required to either respond to them, which it may do exclusively by objecting (i.e., without admitting or denying anything) (§ 2033.210, subd. (b)) or file a timely motion for a protective order (§ 2033.080). The Plaintiffs did not attempt to respond to the discovery after it was served.

Plaintiffs’ contentions regarding whether the RFAs were properly served on Spelman and Linnea Carlson as personal representatives for Oscar Carlson’s estate did not justify their failing to respond to the RFAs. This does not constitute “excusable neglect[.]” (§ 2033.300, subd. (b).) Nor can this be considered “mistake” or “inadvertence” (ibid.), because Spelman and Linnea Carlson chose not to respond to the RFAs. (Joint Dec. of Spelman & Carlson in Supp. of Motion for Relief from Deemed Admissions, ¶ 10.)

Next, Plaintiffs contend that they were not given proper notice of the hearing on the motion to deem matters admitted because the moving papers left the spot designated for the hearing date blank.⁴ This

⁴ This is standard practice. The clerk of court sets the hearing date after the motion is filed. Defendants filed amended moving papers stating the

does not explain why they did not respond to the RFAs or oppose the motion, as Plaintiffs clearly knew of the existence of the motion and the date and time of the hearing and do not contend otherwise. The Court is equally unpersuaded by Plaintiffs' argument that its order is invalid because Defendants' motion to deem matters admitted did not complete the discovery facilitator process. This circumstance does not amount to mistake, inadvertence, or excusable neglect that caused Plaintiffs to refrain from responding to the RFAs or from serving proposed responses prior to the hearing on the motion to deem matters admitted, which needed to happen for the Court to be legally permitted to deny the motion. (§ 2033.280, subd. (c).)

Finally, Plaintiffs argue they were dealing with: the death of a close relative eight months before the RFAs were served; caring for a child with special needs; personal health issues; and dealing with the financial stressor of losing their family home (a reference to the losses at the center of this case, which occurred in 2019 and 2021). While the court is sympathetic, these hardships do not excuse Plaintiffs from the duty to respond to discovery in a case they themselves brought.

Plaintiffs have not offered evidence of "mistake, inadvertence, or excusable neglect" that brought about the March 23, 2026, order deeming the RFAs admitted. The motion for relief the court's finding that the RFAs are admitted is DENIED.

III. MOTION FOR RECONSIDERATION

A. LEGAL STANDARD

"When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by the order may . . . make application to the same judge or court that made the order, to reconsider the matter and modify, amend, or revoke the prior order." (§ 1008, subd. (a).) The motion must be "based upon new or different facts, circumstances, or law" and must be filed "within 10 days after service upon the [movant] of written notice of entry of the order[.]" (Ibid.) It must be accompanied by an affidavit stating "what application was made before, when and to what judge, what order or decisions were made, and what new or different facts, circumstances, or law are claimed to be shown." (Ibid.) "The party seeking reconsideration must provide not just new evidence or different facts, but a satisfactory explanation for the failure to produce it at an earlier time." (Glade v. Glade (1995) 38 Cal.App.4th 1441, 1457.)

"[B]ecause the requirements of section 1008 are jurisdictional with respect to applications by civil parties litigant for reconsideration of previous orders or renewing previously denied motions, any action by the trial court on such an application not in compliance with the dictates of section 1008 would be in excess of its jurisdiction." (Kerns v. CSE Ins. Group (2003) 106 Cal.App.4th 368, 394, fn. 22.)

B. DISCUSSION

hearing date after the clerk assigned it.

Plaintiffs ask the court to reconsider its ruling on a prior motion “based upon new or different facts, circumstances, or law[.]” (§ 1008.) This means the “new or different facts, circumstances, or law” must be relevant to the questions presented by the motion the movant wants the court to reconsider. Whether the matters sought to be deemed admitted are, in fact, true is irrelevant to a motion to deem matters admitted. (See § 2033.280.) Plaintiffs’ content that they have “meritorious denials” to each of the RFAs. This contention is also not new evidence. Those new denials are irrelevant to a motion under Section 2033.280.

Plaintiffs also rely on “new” legal authority they claim establishes that Spelman and Linnea Carlson properly did not respond to the RFAs as personal representatives of Oscar Carlson’s estate, and that service of the RFAs on Carlson’s estate was void. These apply to Plaintiff’s opposition to the motion to deem matters admitted and cannot be raised now when they ask for reconsideration. (See Glade, *supra*, 38 Cal.App.4th 1441, 1457.)

Plaintiffs also argue that certain statements made at the hearing on the motion to deem matters admitted are “new facts” justifying reconsideration. Events occurring at the hearing on the motion are necessarily not “new” relative to the time the court issued its final ruling on the motion and so cannot support a motion for reconsideration.

In its ruling on Defendants’ motion to deem matters admitted and concurrent motion to dismiss the case for failure to prosecute, the Court referred to the circumstances of Plaintiffs’ prior counsel’s withdrawal from the representation in July 2024. (March 23, 2026, Order, p. 4.) Plaintiffs argue that the Court’s comment on the withdrawal incorrectly “negative[ly] characteriz[ed]” Plaintiffs’ conduct. (Memorandum, p. 9.) They claim they never had a chance to address their former attorneys’ stated reasons for withdrawing from the representation and that this is a “new circumstance” warranting reconsideration of the motion to deem matters admitted. The circumstances of the Plaintiffs’ former counsel’s withdrawal are irrelevant to the motion to deem matters admitted.

The Court discussed the attorneys’ departure from the case in its ruling on the concurrently-decided motion to dismiss the case for failure to prosecute. The Court declines Plaintiffs’ invitation to invoke its inherent authority to reconsider the portion of its March 23, 2026 “resting on . . . unrebutted characterizations” relating to Plaintiffs’ prior counsel’s withdrawal (Reply, pp. 1-2), because there is nothing to reconsider.

The Court recognized Plaintiffs’ difficulty in obtaining counsel, which was Plaintiffs’ primary argument in opposition to the motion to dismiss, and then it decided that motion in Plaintiffs’ favor.

The motion for reconsideration is DENIED.

C. MOTION TO STAY SUMMARY JUDGMENT PROCEEDINGS

During the Case Management Conference held on June 24, 2026, Defendant explained that the Motion for Summary Judgment was filed with the court on or about June 23.

Plaintiffs request an order staying all summary judgment proceedings pending resolution of the motion for relief from deemed admissions and motion for reconsideration. The request for a stay is moot.

Defendant to prepare the order.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department L. For routine appearances, the parties may access Department L for video conference via a link on the court website. Kindly turn your camera on when your case is called and make sure the party or lawyer making the appearance is properly identified on the screen.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing while using the virtual remote courtroom. If the connection is inadequate, the Court may proceed with the hearing in the party's absence. If it is determined that you are diving your car during the hearing, you will be removed from the virtual courtroom. (Yes, this happens).

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 08/14/26 TIME: 1:30 P.M. DEPT: L CASE NO: CV0003635

PRESIDING: HON. MARK A. TALAMANTES

REPORTER:

CLERK: M. GIL

PLAINTIFF: ABSOLUTE RESOLUTIONS INVESTMENTS, LLC vs. DEFENDANT: POLA G. BENEDICTO	
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NATURE OF PROCEEDINGS: MOTION – ENTRY OF JUDGMENT

RULING

Plaintiffs filed a Motion for Entry of Judgment after settlement with the Defendants.

Plaintiff states that the parties have settled this action by entering into a written settlement agreement which provides that a judgment would not be entered so long as Defendant made certain periodic payments towards a settlement amount. The Settlement further provided that the parties agreed that the court would retain jurisdiction under C.C.P. §664.6 to order entry of judgment. Defendant has defaulted under the terms of the written settlement agreement.

The motion is unopposed. Defendant has not filed a response, nor was an opposition to the motion for approval filed. The failure to oppose is considered consent to the granting of the motion. (Cal. Rules of Court, rule 8.54(c); Local Rule Marin, Civil 2.8G.1.)

Plaintiff's motion is therefore GRANTED in its entirety.

Parties must comply with Marin County Superior Court Local Rules, Rule 2.10(A), (B), which provides that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 2.10(B), the tentative ruling shall become the order of the court.